

FOR LIQUOR DIVISION USE ONLY			
Customer #: _____			
Trf from: _____			
Reviewer: _____		Date _____	
Agent:	_____	_____	_____
Chief:	_____	_____	_____

License Fees

Annual Fee: \$ _____

Prorated Fee: \$ _____

Transfer Fee: \$ _____

Publishing Fee: \$ 100.00

Local License #: 6 2408132
Date filed with clerk: 4/26/22
Advertising Dates: (2 Weeks)
5-12 & 5-19-22
Hearing Date: 5 / 23 / 2022

License Term: upon / issuance / _____ Through 3 / 31 / 2023
Month Day Year Month Day Year

Business E-Mail Address: westbyedge@gmail.com

<u>FILING FOR</u> ☒ NEW LICENSE ☐ TRANSFER OF LOCATION		<u>FILING IN</u> (CHOOSE ONLY ONE) ☒ CITY OF: <u>Cheyenne</u> ☐ COUNTY OF: _____	<u>FILING AS</u> (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ LP/LLP ☒ LLC ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ORGANIZATION ☐ OTHER _____
☐ TRANSFER OWNERSHIP FORMERLY HELD BY: _____		☐ ASSIGNMENT LETTER ATTACHED	

<u>TYPE OF LICENSE OR PERMIT</u> (CHOOSE ONLY ONE)		
RETAIL LIQUOR LICENSE ☐ ON-PREMISE ONLY (BAR) ☐ OFF-PREMISE ONLY (PACKAGE STORE) COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)	☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ BAR AND GRILL LIMITED RETAIL (CLUB) ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB	☒ MICROBREWERY ☐ WINERY ☐ DISTILLERY SATELLITE ☐ WINERY SATELLITE ☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

☐ CONVENTION FACILITY
 ☐ GOLF CLUB
 ☐ RESORT

☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM
 ☐ GUEST RANCH

To Assist the Liquor Division with scheduling inspections: <u>OPERATIONAL STATUS</u>			
☒ FULL TIME (e.g. Jan through Dec)	(specify months of operation)	from <u>January</u>	to <u>December</u>
☐ SEASONAL/PART-TIME	DAYS OF WEEK (e.g. Mon through Sat)	from <u>Monday</u>	to <u>Sunday</u>
☐ NON-OPERATIONAL/PARKED	HOURS OF OPERATION (e.g. 10a - 2a)	from <u>11:00 a.m.</u>	to <u>11:00 p.m.</u>

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103(a)(iii)

- (a) OWN the licensed building?

☒ YES (own)
- (b) LEASE the licensed building? (Lease must be through the term of the liquor license)

☐ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page_____paragraph_____of lease.
- (ii) Where the Sales provision for alcoholic or malt beverages is located, on page_____paragraph_____of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for?

☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i)

☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii)

☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv)

☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)

1. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO

7. MICROBREWERY LICENSE:

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☒ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☒ BAR AND GRILL ☐ WINERY
- (b) Do you self distribute your products? W.S. 12-2-201(a)

(Requires wholesale malt beverage license with the Liquor Division)

☐ YES ☒ NO

8. WINERY LICENSE:

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT

☐ BAR AND GRILL ☐ MICROBREWERY

0000

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Darin Westby	11/26/70	714 W. 20th St Cheyenne, WY 82001	421-4899	2 yrs	50	YES ☐ NO ☒	YES ☐ NO ☒
Melissa Westby	9/6/68	714 W. 20th St. Cheyenne, WY 82001	421-4603	2 yrs	50	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

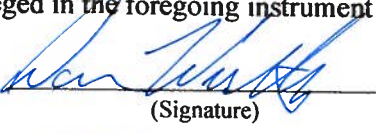
*Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.*

STATE OF WYOMING)

COUNTY OF Laramie)

) SS.

Signed and sworn to before me on this 20th day of April, 2022 that the facts alleged in the foregoing instrument are true by the following:

- | | | | |
|----|---|---|------------------------|
| 1) | 
(Signature) | <u>Darin Westby</u>
(Printed Name) | <u>Member</u>
Title |
| 2) | 
(Signature) | <u>Melissa Westby</u>
(Printed Name) | <u>Member</u>
Title |
| 3) |
(Signature) |
(Printed Name) |
Title |
| 4) |
(Signature) |
(Printed Name) |
Title |
| 5) |
(Signature) |
(Printed Name) |
Title |

Witness my hand and official seal:

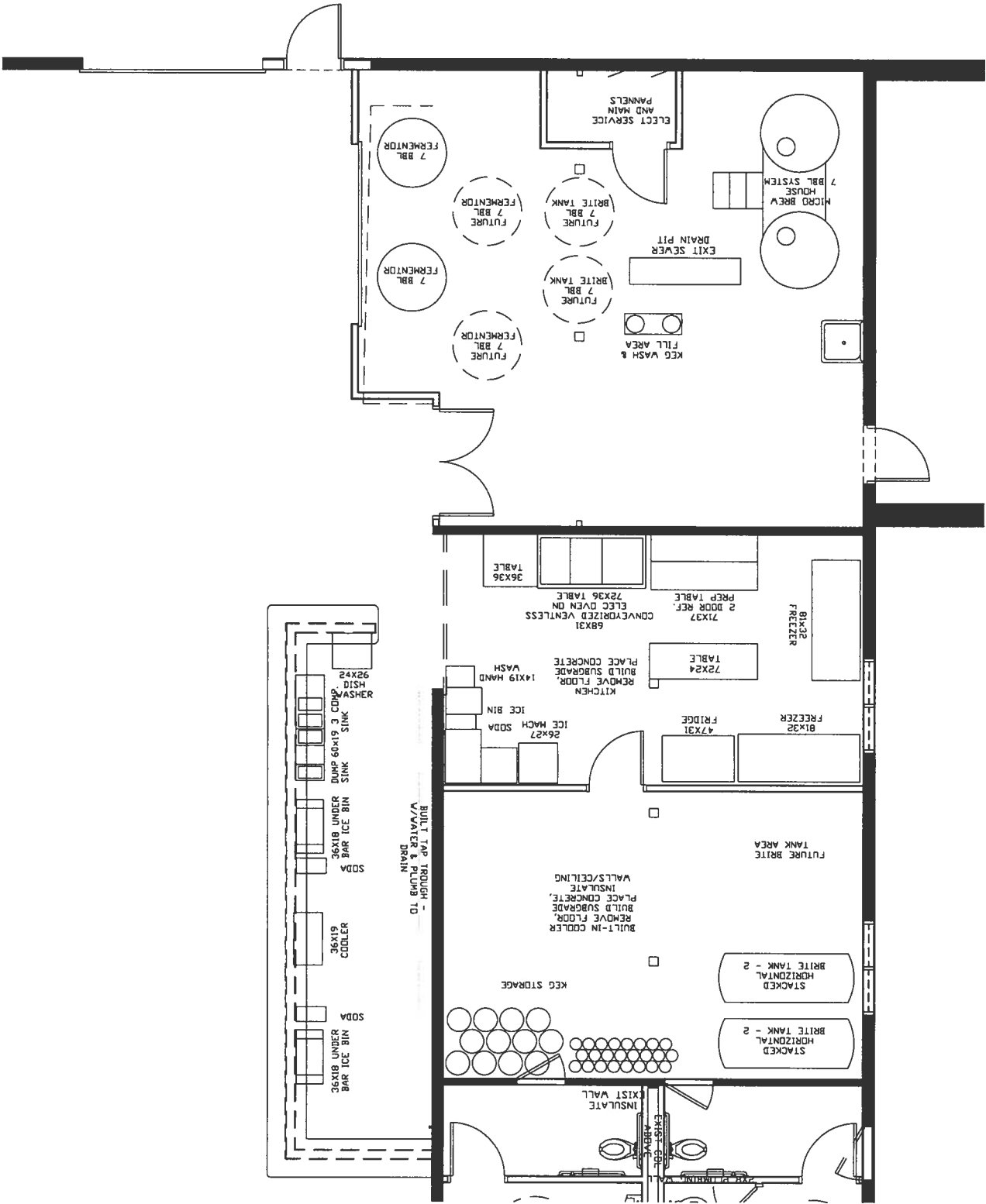




Signature of Notary Public

(SEAL)

My commission expires: Oct. 25, 2024

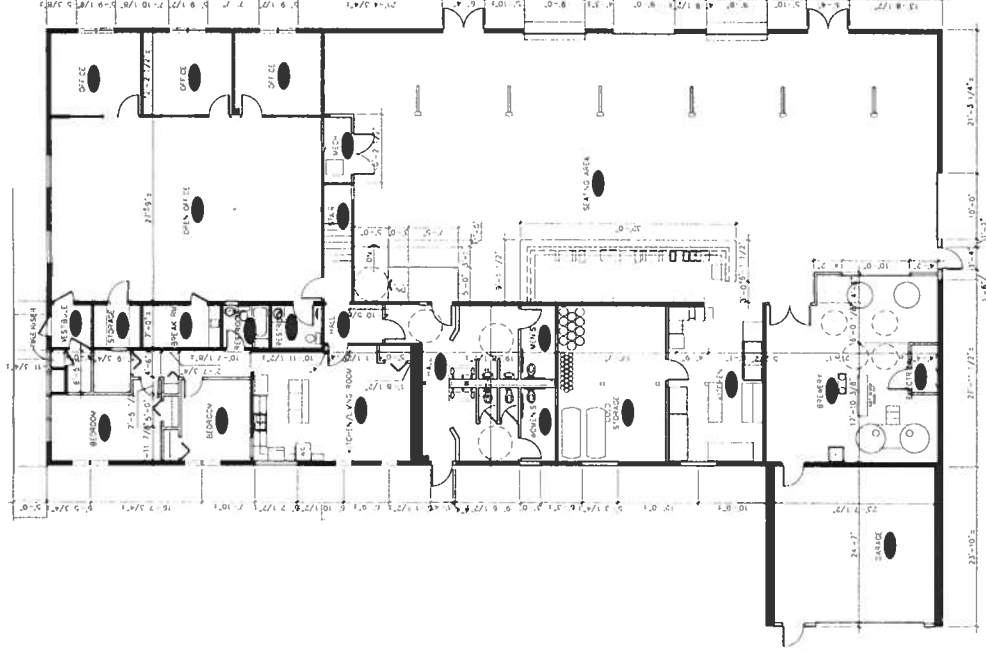


GENERAL

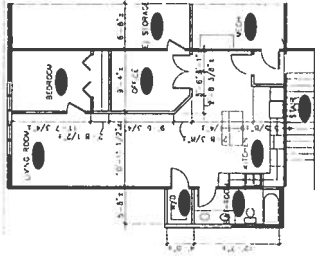
- [illegible]

WALL TYPES

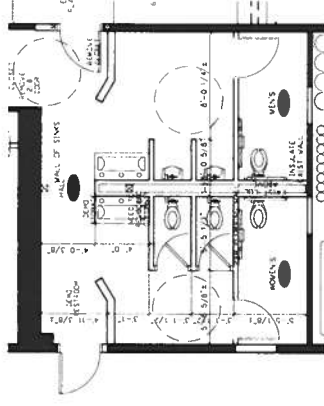
- [illegible]



11
AD11 SCALE 1/8"=1'-0"



2ND FLOOR DIMENSION PLAN



3 ENLARGED RESTROOM PLAN
AP11 SCALE 1/8"=1'-0" 5.081m

WESTBY EDGE LLC

714 W. 20th Street
Cheyenne, WY 82001

April 21, 2022

The Honorable

Patrick Collins
Mayor of Cheyenne

The Honorable

Pete Laybourn
Scott Roybal
Jeff White
Bryan Cook
Dr. Mark Rinne
Tom Segrave
Dr. Michelle Aldrich
Richard Johnson
Ken Esquibel
City Council Members

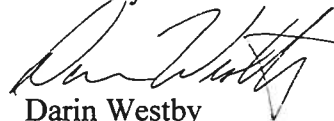
2101 O'Neil Avenue
Cheyenne, Wyoming, 82001

Dear Mayor and Members of the City Council,

Please accept this letter as our introduction and cover letter for our application for a brewery and bar and grill permit for the City of Cheyenne. It has been a pleasure working with you all during the rezoning, platting, building and liquor license portion of this project and we would like to thank you for your assistance in that endeavor. As most of you know, Darin and I are renovating a 90+ year old warehouse on the West Edge into a multi-use property consistent with the City's West Edge Plan. The warehouse, when completed, will have a brewery/bar and grill with a large outdoor patio and game space, an event/overflow space and an apartment. We are looking forward to incorporating our outdoor space with the Reed Avenue Corridor Project and contributing to the revitalization of the West Edge.

We look forward to working with the City on this application and permit process and we are happy to answer any questions or provide any additional information you may require.

Sincerely



Darin Westby



Melissa (Misha) Westby

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

Westby Edge LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **February 19, 2020**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2020-000901137**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 21st day of April, 2022 at 2:31 PM. This certificate is assigned ID Number 051452221.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

Westby Edge LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **19th** day of **February, 2020** at **9:43 AM**.

Remainder intentionally left blank.



Filed Date: 02/19/2020



Secretary of State

Filed Online By:
Melissa Westby
on 02/19/2020

PROPOSED ALCOHOL TRAINING PROGRAM FOR WESTBY EDGE

Introductory statement:

We take this issue very seriously, we will provide consistent and substantive training for all employees (and volunteers if any) serving alcohol in our establishment.

Initial orientation:

We will provide an initial orientation to all employees (and volunteers if any) when they begin work about our commitment to a safe and secure establishment where alcohol will be served. We will explain the required training including requirements of successfully completing the training and updating and maintaining certifications.

Substantive training:

We will require that all employees (and volunteers if any) who sell, serve or deliver alcoholic or malt beverages or provide on-site security are TIPS trained in a program approved by the Wyoming Liquor Division by a certified trainer. Completion of the training will be a requirement before the employee will be allowed to sell, serve or deliver alcohol. We will maintain TIPS training and certification as part of our business records and make sure that every person selling, serving, or delivering alcohol or involved in on-site security is current on his/her TIPS training. This documentation will be available to law enforcement personnel for inspection.

Alcohol Related Policies:

No alcohol will be sold or served to persons under the legal drinking age within the licensed or permitted building or authorized areas of service.

All incidents requiring law enforcement responsive services will be immediately reported by the licensee, permittee, employees, volunteers, on-site managers, agents or any persons providing on-site security services. Immediate notice will be provided to the Police Department of any criminal or illegal activity observed on the licensee's or permittee's property or adjoining property affiliated with the sale or consumption of alcoholic liquor and malt beverages, including the reporting of any assault, aggravated assault, or assault and battery.

Industry Member Information

Report Date: 4/26/2022 12:52:51PM

Original Application 04/23/2021
Submitted Date

Original Application Tracking Number 2021-BRE-00450-O
Application Type Application for Brewery or Brewpub
Application Status Approved
EIN 86-1347456
Company Name Westby Edge LLC
Premises Address 714 W 20TH ST
CHEYENNE, LARAMIE WY 82001
Premise Contact Name
Premise Phone Number

Application Contact

Full Name Melissa Westby
Business Name
Address/City/State/Zip 714 W 20th St
Cheyenne WY 82001
Phone/Fax 307-42-1-46/--
Email westbyedge@gmail.com

Mailing Address

Full Name Melissa Westby
Business Name
Address/City/State/Zip 714 W 20th St
Cheyenne WY 82001
Phone/Fax 307-42-1-46/--
Email westbyedge@gmail.com

BREWERY INFORMATION

Are you a member of a controlled group of breweries? No
What is your estimated production in barrels per year? Less than 60,000
I certify that I AM NOT required to provide a bond CHECKED

Describe the entire tract of land by using directions and distances

A parcel of land being situated in a portion of the southwest one-quarter of Section 31, Township 14 North, Range 66 West of the Sixth Principal Meridian, known as Lot 5 of Westby Edge and being more particularly described as follows:
Beginning at the southwest corner of said lot 5 and the intersection of the north right of way line of 20th Street and the east right of way line of Reed Avenue: Thence along said east right of way line N26°28'11"W a distance of 132.00 feet to a point on the north line of said lot 5 and the intersection of said east right of way line of Reed Avenue and the south right of way line of a 16 foot alley; Thence along said south right of way line N63°31'49"E a distance of 166.12 feet to the intersection of said alley south right of way and adjacent northwest corner of Lot 1; Thence south along adjacent Lot 1 west property line S26°28'11"E a distance 37.00 feet to the southwest property corner of Lot 1 and northern property line of Lot 2; Thence west along adjacent northern Lot 2 property line S63°31'49"W a distance 7.12 feet to the northwest property corner of Lot 2; Thence south along adjacent Lots 3 & 4 west property lines S26°28'11"E a distance 65 feet to the southwest property corner of Lot 4; Thence West S63°31'49"W a distance 159 feet more or less to the beginning.

Describe each brewery premises building: provide size (using distances and directions), construction, use of building, and location of doors and windows

The brewery premises consists of one building located on north Property line and approximately 150 feet from the Reed Avenue property line. The building is a metal sided wood framed warehouse with a poured concrete floor. The brewer area consists of the northern portion of the building and it is approximately 91.5' X 65'. The building has standard window on the East wall and garage doors on the West and North walls. The garage doors lead to the entry way on the West side and the alley on the North Side. There are two man doors one on the West side and one on the East side.

Identify which areas of the brewery will be used as a tavern/pub including the boundaries

The West facing half of the brewery premises from the entryway on the East wall on the South side and from the partitioned brewery equipment area will be used as the tavern/pub. This space is the full 91.5' on the West side of the building going back approximately 35'.

Identify which areas are accessible to the public and areas which are not

The East side of the brewery premises, the brewery equipment including tanks, the kitchen and the built in cooler (including the holding tanks) will not be accessible to the public and will be appropriately secured.

Describe the security measures that will prevent access to non-public areas (brewing area)

The brewery equipment area will be secured with a locking garage door and a locking mandoor. The cooler will be secured by a locking cooler door. The kitchen will be separated by the bar and a sign.

Describe in detail the method to be used for measuring beer for the purpose of tax determination. Identify the tanks which will periodically contain tax-determined beer, and any other areas where tax-determined beer will be stored

We will be using a 7bbl brewing system and plan to brew 4 to 6 times per month. We have two 7 bbl fermenters and 2 7 bbl brite tanks. we have 4 8bbl holding tanks in the cooler which will use to serve beer directly from. The holding tanks will be calibrated and are equiped with appropriate measuring devises. We will transfer the beer from the brite tanks to the holding tanks prior to any sales and we will measure the beer when we transfer to the holding tanks and keep accurate and timely records to determine tax due.

Will you be Alternating

No

Describe brewery security to include; locks, access to the brewery and how un-taxpaid goods will be protected during and after business hours	The brewery premises including all areas where un-taxpaid goods are stored will be secured by locking solid doors. The doors will be equipped with dead bolt locks. A security system will be installed on all entrances and windows into the brewery premises and into the non-public areas of the brew pub specifically the brewery equipment area and the cooler.
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BREWERY OPERATION INFO

Brewpub	CHECKED
Do you own the brewery premises?	Yes
If yes, please provide the name and address of the mortgagee, or any other person who has a claim to the land or buildings which house the brewery. If there is no such person or mortgagee please enter "Not Applicable"	Firstier Bank, 1508 Stillwater Ave. #B, Cheyenne, WY 82009 - mortgage and construction loan holder.

BREW PUB STATEMENT

We must separate the brewery operations (non-public area) from public area of the brewery premises by an adequate partition. Access to the brewery operations must be restricted to authorized visitors and employees only	CHECKED
The serving tanks as noted on our attached diagram are our tax-determined beer tanks	CHECKED
What is the approximate working capacity of the serving tanks (measured in barrels or kegs)?	24
The capacity of the serving tanks is measured in	Barrels
These tanks are accurately calibrated with appropriate measuring devices	CHECKED
We must transfer beer ready for consumption or sale from our fermenters into an empty tax-determination tank for measurement by the approved measuring device	CHECKED
We will make prompt and accurate records of these transactions to determine tax due	CHECKED
Do you plan to conduct retail sales of alcohol other than beer?	Yes

DBA/OPERATING NAME

Doing Business As / Operating Name	Westby Edge
By checking this box I certify that the Doing Business As / Operating Name listed above has been registered with my county or state, if applicable	CHECKED

DECLARE AND ACKNOWLEDGE

I declare under penalties of perjury under the laws of the United States of America, that I have examined this application, including accompanying statements, and to the best of my knowledge and belief, it is true, correct, and complete.	CHECKED
Declaration Date	04/23/2021

ENTITY INFORMATION

Business Name	Westby Edge LLC
EIN	86-1347456
Effective Date	06/02/2021
Triage Status	No

REASON FOR THE APPLICATION

New brewery / brewpub	CHECKED
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REGISTRATION INFORMATION

Registry Number	BR-WY-21047
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REQUIRED DOCUMENT CHECKLIST

Document Type	Diagram
Method of Submission	Uploaded
Document Received	undefined